

**IN THE COUNTY COURT IN AND FOR PASCO COUNTY, FLORIDA
CIVIL DIVISION 6-B**

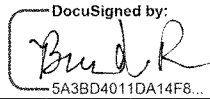
SWEET LIVING, INC.,

Plaintiff,

vs.

BRANDI RODGERS,

Defendant.

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CASE NO.: 2026CC001256CCAXES

**DEFENDANT'S VERIFIED ANSWER, AFFIRMATIVE DEFENSES, AND DEMAND
FOR JURY TRIAL**

COMES NOW Defendant, BRANDI RODGERS, appearing pro se, and pursuant to Florida Supreme Court Approved Form 1.947(b) and Fla. R. Civ. P. 1.110(c), files this Verified Answer, Affirmative Defenses, and Demand for Jury Trial in response to Plaintiff's Complaint for Eviction (Mobile Home Park Eviction — Non-Payment of Rent), and states:

PRELIMINARY STATEMENT

This Answer is filed within five (5) business days of service of process upon Defendant. Service of process was effected by purported substitute service on May 14, 2026, as reflected in the Return of Service filed by Plaintiff on May 19, 2026 (Filing # 248533065, DIN 23). Defendant does not concede the sufficiency of that service and has contemporaneously filed a Motion to Quash Service of Process; this Answer is filed in the alternative and without waiver of the sufficiency-of-service defense. All defenses available under Fla. R. Civ. P. 1.140(b) are expressly reserved.

ANSWER TO COMPLAINT

Defendant has not been provided with a final, conformed copy of Plaintiff's Complaint for Eviction. Pending such production, and to preserve all defenses within the 5-day summary-procedure window of Fla. Stat. § 51.011, Defendant answers as follows:

1. Defendant lacks knowledge or information sufficient to form a belief about the truth of the allegations contained in each numbered paragraph of the Complaint, and therefore DENIES each allegation and demands strict proof thereof.
2. Specifically, but without limitation, Defendant DENIES:
 - That Defendant is the "owner" of any mobile home situated in Plaintiff's park as a matter of Florida law. Pursuant to Fla. Stat. § 319.22(2), no certificate of title to any mobile home in the park has ever been issued in Defendant's name.
 - That Defendant is a "tenant" of Plaintiff's park within the meaning of Fla. Stat. § 723.003 or § 723.059. Plaintiff (or the park owner Plaintiff represents) has never approved Defendant as a tenant.

- That Defendant has any obligation to pay lot rent for the property located at 3929 Argyle St., Zephyrhills, FL 33542.
 - That Defendant has ever occupied, taken possession of, or moved into the mobile home located at 3929 Argyle St., Zephyrhills, FL 33542.
 - That Plaintiff has satisfied the statutory predicates for eviction under Fla. Stat. § 723.061, including but not limited to the written demand and notice requirements of § 723.061(4).
3. Defendant respectfully requests that Plaintiff produce a conformed copy of the Complaint, the 5-Day Notice (Exhibit A to the Complaint), the certified-mail receipt for the 5-Day Notice, and any return receipt or evidence of posting on the premises, so that Defendant may amend this Answer to provide paragraph-by-paragraph responses if necessary.

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AFFIRMATIVE DEFENSES

Without waiving the foregoing denials, Defendant asserts the following affirmative defenses, each of which is a complete defense to Plaintiff's claim:

FIRST AFFIRMATIVE DEFENSE — Defendant Is Not the Legal Owner of Any Mobile Home (Fla. Stat. § 319.22(2))

No certificate of title to the mobile home located at 3929 Argyle St., Zephyrhills, FL 33542 has ever been issued in the name of Defendant Brandi Rodgers. Pursuant to Fla. Stat. § 319.22(2), Defendant has not acquired marketable title and is not the legal owner of the mobile home. Because Plaintiff's claim depends upon Defendant's status as the mobile-home owner, the Complaint fails as a matter of law.

SECOND AFFIRMATIVE DEFENSE — Defendant Is Not a Tenant of the Park (Fla. Stat. § 723.059)

Pursuant to Fla. Stat. § 723.059(1), the purchaser of a mobile home within a park may become a tenant of the park "subject to the approval of the park owner." Plaintiff has never approved Defendant as a tenant of the park. Defendant therefore has no tenancy status that would create any obligation to pay lot rent.

THIRD AFFIRMATIVE DEFENSE — Statutory Right of Rescission Timely Exercised (Fla. Stat. § 723.059(1))

Pursuant to Fla. Stat. § 723.059(1), "[t]he purchaser of the mobile home may cancel or rescind the contract for purchase of the mobile home if the purchaser's tenancy has not been approved by the park owner 5 days before the closing of the purchase." Defendant's tenancy was never approved at any time before or after the closing. Defendant exercised the statutory right of rescission by written demand for refund of \$18,000.00 sent by United States Certified Mail, Return Receipt Requested, in January 2026, which the seller signed for. The contract was therefore rescinded by operation of statute.

FOURTH AFFIRMATIVE DEFENSE — Failure to State a Cause of Action

Plaintiff's Complaint, on its face, fails to state a cause of action upon which relief may be granted. See Defendant's Motion to Dismiss filed contemporaneously herewith, the substance of which is incorporated by reference.

FIFTH AFFIRMATIVE DEFENSE — Lack of Standing / No Privity

Plaintiff lacks standing to recover lot rent from Defendant because Plaintiff is not in privity, statutory or contractual, with Defendant. The Complaint nowhere alleges (a) that a certificate of title was issued to Defendant, (b) that Plaintiff or the park owner approved Defendant as a tenant, or (c) that any written lot-rental agreement exists between Plaintiff and Defendant.

SIXTH AFFIRMATIVE DEFENSE — Insufficient Service of Process (Fla. R. Civ. P. 1.140(b)(5))

Plaintiff's purported substitute service on Defendant's son on May 14, 2026 fails to satisfy the strict-compliance requirements of Fla. Stat. § 48.031(1)(a), in that: (a) the Return of Service does not affirmatively establish that the recipient resides at the defendant's usual place of abode; (b) the process server's own narrative shows the recipient was behind a closed storm door at the time of "service," calling into question whether the recipient was informed of the contents of the

papers; and (c) the process server's own records show only two failed attempts to find Defendant personally. See Defendant's Motion to Quash Service of Process filed contemporaneously herewith.

SEVENTH AFFIRMATIVE DEFENSE — Failure of Statutory Notice Procedure (Fla. Stat. § 723.061(4))

Fla. Stat. § 723.061(4) requires that any notice required by Chapter 723, including the 5-day demand for lot rent, must be "posted on the premises and sent to the mobile home owner and tenant or occupant, as appropriate, by certified or registered mail, return receipt requested, addressed to the mobile home owner and tenant or occupant, as appropriate, at her or his last known address." Plaintiff has not satisfied each prong of this statutory notice requirement. In particular, on information and belief, Plaintiff did not send any 5-day notice to the title-holder of record of the mobile home (a non-party) by certified or registered mail return receipt requested.

EIGHTH AFFIRMATIVE DEFENSE — Improper Use of Residential-Eviction Summons Form for Chapter 723 Action

Plaintiff issued a summons on Florida Supreme Court Form 1.923(a), captioned "Eviction Summons/Residential," which is the summons form for Chapter 83 residential evictions. Plaintiff is pursuing this case as a "Mobile Home Park Eviction" under Chapter 723 (see Plaintiff's Return of Service expressly describing the underlying document as "Complaint for Eviction Mobile Home Park Eviction (Non-Payment of Rent)"). The use of the residential-tenancy summons form is inconsistent with the statutory framework Plaintiff purports to invoke and conflates the distinct categories of "mobile home owner" and "tenant" under Chapter 723.

NINTH AFFIRMATIVE DEFENSE — Rule Not Properly Promulgated or Uniformly Applied (Fla. Stat. § 723.061(1)(c))

To the extent Plaintiff relies upon a screening rule or other park rule as a basis for eviction, Fla. Stat. § 723.061(1)(c) provides that "[a] properly promulgated rule or regulation may not be arbitrarily applied and used as a ground for eviction." On information and belief, Plaintiff's screening practice is not properly promulgated and is not uniformly applied. Defendant is aware of at least one other prospective purchaser who, in January 2026, paid Plaintiff a \$250 background-screening fee and to date has not received a background-check result or a refund.

TENTH AFFIRMATIVE DEFENSE — Equitable Estoppel / Failure to Mitigate

The seller of the mobile home (a non-party) represented to Defendant that the seller had authority from Plaintiff to facilitate the sale and submit Defendant's tenancy application to Plaintiff's property manager, Jack Bergert, for sign-off. The seller further represented (and demonstrated by reference to her own bank account) that December 2025 lot rent had been paid. Plaintiff is equitably estopped from claiming Defendant owes lot rent from a tenancy that Plaintiff itself never approved and from which Defendant promptly sought rescission.

ELEVENTH AFFIRMATIVE DEFENSE — Procedurally Defective Motion for Judicial Default

Plaintiff filed a Motion for Judicial Default and Motion for Final Judgment of Possession on March 12, 2026 — over two months before service of process was perfected on May 14, 2026. A motion for default cannot lie against an un-served defendant. Plaintiff voluntarily withdrew that motion on April 1, 2026 (Filing # 245113375, DIN 15). To the extent Plaintiff seeks to revive or

rely upon that motion, the motion is procedurally void and any relief premised upon it is improper.

TWELFTH AFFIRMATIVE DEFENSE — Reservation of Rights and Defenses

Defendant reserves the right to assert additional affirmative defenses upon further investigation, including but not limited to defenses based on: (a) the title's REBUILT brand and undisclosed prior damage in violation of Fla. Stat. § 319.14; (b) the seller's fraudulent misrepresentations; (c) violation of the Florida Deceptive and Unfair Trade Practices Act, Fla. Stat. §§ 501.204, 501.211; (d) lack of subject-matter jurisdiction; (e) statute of frauds; and (f) any other defense available under Florida law.

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DEMAND FOR JURY TRIAL

Pursuant to Article I, Section 22 of the Florida Constitution, the Seventh Amendment to the Constitution of the United States, and Florida Rule of Civil Procedure 1.430, Defendant hereby DEMANDS A TRIAL BY JURY of all issues so triable as of right, including without limitation: (a) whether Defendant is the "owner" or "tenant" of any mobile home within the meaning of Fla. Stat. §§ 319.22(2), 723.003, or 723.059; (b) whether Plaintiff satisfied the statutory notice predicates of Fla. Stat. §§ 723.061 and 723.063; (c) the amount, if any, of lot rent allegedly owed; and (d) the reasonableness and necessity of any attorney's fees and costs claimed by Plaintiff.

MOTIONS FILED CONTEMPORANEOUSLY HERewith

Defendant has filed contemporaneously herewith the following motions, the substance of which is incorporated by reference:

4. Defendant's Verified Motion to Determine Rent and Request for Evidentiary Hearing on the Existence of a Tenancy (Fla. Stat. § 723.063(2));
5. Defendant's Motion to Quash Service of Process (Fla. R. Civ. P. 1.140(b)(5); Fla. Stat. § 48.031);
6. Defendant's Motion to Dismiss Complaint for Failure to State a Cause of Action and Lack of Standing (Fla. R. Civ. P. 1.140(b)(6) and (b)(2)); and
7. Defendant's Motion to Confirm Demand for Jury Trial or, in the Alternative, for Leave to Demand Jury Trial Out of Time (Fla. R. Civ. P. 1.430).

PRAYER FOR RELIEF

WHEREFORE, Defendant respectfully requests that this Honorable Court:

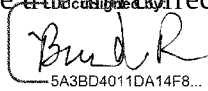
8. Enter judgment in favor of Defendant and against Plaintiff on all counts of the Complaint;
9. Deny Plaintiff's request for possession of the mobile home as to Defendant, Defendant having no possessory interest in the home;
10. Deny Plaintiff's request for any money judgment, attorney's fees, or costs against Defendant;
11. Award Defendant her costs as the prevailing party pursuant to Fla. Stat. § 723.068;
12. Set this matter for jury trial in accordance with Defendant's demand; and
13. Grant such further relief as the Court deems just and proper.

VERIFICATION

STATE OF FLORIDA

COUNTY OF PINELLAS

Under penalties of perjury, I, BRANDI RODGERS, declare that I have read the foregoing Verified Answer, Affirmative Defenses, and Demand for Jury Trial, and that the facts stated therein are true and correct to the best of my knowledge, information, and belief.


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BRANDI RODGERS, Defendant

Dated: May 21, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on May 21, 2026, a true and correct copy of the foregoing was furnished by ☐ U.S. Mail, ☐ email, ☐ hand delivery to: Keith William Wynne, Esq., counsel for Plaintiff, at Keith@KeithWillWynne.com, Pleadings@KeithWillWynne.com, and Marcela@KeithWillWynne.com, and at 1001 East Baker Street, Suite 101, Plant City, FL 33563.

Respectfully submitted,

DocuSigned by:


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Brandi Lynn Rodgers

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